

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

MSRF, INC., *Complainant*

v.

YANG MING TRANSPORT CO., *Respondent*.

DOCKET NO. 22-21

Served: December 8, 2022

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER DENYING CONDITIONAL CONSENT MOTION TO AMEND SCHEDULING ORDER

On December 7, 2022, Complainant filed a conditional consent motion (“Motion”) to amend the scheduling order (“Scheduling Order”) that issued on October 13, 2022. Previously, on September 22, 2022, Respondent had requested and been granted an extension of time for the initial conference and joint status report. Complainant states in its Motion that Respondent consents to the extension of time for responding to discovery on the condition that the other changes to the Scheduling Order are also granted.

The Motion seeks extensions of all dates previously proposed by the parties’ joint status report and proposed discovery schedule filed on October 7, 2022 (“JSR”) and adopted by the undersigned with changes to the briefing schedule only. *See JSR and Scheduling Order*. The Motion states that the parties abided by the October 17, 2022 exchange of initial requests for production of documents and electronically store information (“ESI”), but due to “a problem with the collection and filtering of the responsive emails...[that was] identified late in the process,” Complainant apparently has not met the November 14, 2022, date to serve objections and responses to initial written discovery requests and begin notice of depositions because it has not complied with the production of ESI due to the problem it encountered. The Motion further states that a solution was identified at some unstated time and can be used to comply with the production of ESI by December 21, 2022. Motion at 1. It is unclear from the Motion whether Respondent has served its objections and responses to the initial discovery requests made by Complainant and started to schedule depositions.

This case was initiated on August 19, 2022, and the Motion proposes amending the Scheduling Order by extending all due dates by a month, or more. Motion at 1-2. Complainant offers that since expert witness testimony will not be necessary in this case, the proposed amendment “streamline[s] the process” by eliminating the dates to provide expert reports. Scheduling Order at 2. The Motion fails to explain how eliminating reports that were scheduled to be served on the other party on December 21, 2022, and January 17, 2023, results in the parties needing more time to complete discovery and submit their briefs. In fact, eliminating the

need for expert reports suggests that both parties will have more time to complete the remaining discovery items and remain on track with the briefing schedule.

Complainant also seeks to amend the Scheduling Order by adding a new date 17-days after discovery ends by which the parties must file motions to compel and/or seeking protective orders, again without explanation as to how its email filtering and collection problem (that it asserts has been resolved) supports such an addition. As noted in the Initial Order that issued on August 22, 2022, a “motion to compel should be filed as soon as practicable.” Complainant’s Motion does not articulate good cause for amending the Scheduling Order to specify a date well after discovery closes to file such motions.

Good cause has not been provided to amend and extend all dates in the Scheduling Order. As indicated in the August 19, 2022, notice of filing complaint, a decision in this proceeding is required by August 19, 2023. As Complainant notes in the Motion, the requested extension of all dates will make it impossible to complete this proceeding in a timely manner. While the Motion does not provide good cause for extending all dates in the Scheduling Order, the requested extension from November 14, 2022, to December 21, 2022, to serve objections and responses to initial written discovery requests and to start notice of depositions is necessitated by Complainant’s difficulties filtering and collecting responsive emails. The parties are reminded that requests for extensions of time should be submitted prior to the due date set in the Scheduling Order.

Good cause not having been stated, it is hereby

ORDERED that Complainant’s conditional consent motion to amend scheduling order be **DENIED**. It is

FURTHER ORDERED that the Scheduling Order shall be revised to reflect December 21, 2022, as the date by which the parties are to serve objections and responses to initial written discovery requests and to begin notice of depositions. The other deadlines in the Scheduling Order remain in effect.



Linda S. Harris Crovella
Administrative Law Judge